

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3464

By: Boles of the House

and

Paxton of the Senate

COMMITTEE SUBSTITUTE

An Act relating to energy; creating the Oklahoma Energy Storage Resource Safety Act; stating legislative intent; defining terms; requiring energy storage resources comply with certain safety codes and standards; providing for resolution if conflict exists; authorizing requirement for certain written report; listing required contents of written report; requiring certain cooperation; requiring certain information be provided; requiring the curing of noncompliance before commencement of operations; requiring certain energy storage resource to have emergency operations plan; listing requirements of emergency operations plan; requiring submission of emergency operations plan; requiring the offering of certain training to local first responders; listing requirements of training; prohibiting certain actions by political subdivisions; requiring certain agreements contain decommissioning provisions; requiring landowner make certain timely requests for grantee compliance; stating certain applicability; requiring certain financial assurance be delivered; stating acceptable forms of financial assurance; requiring certain amount of financial assurance; providing agreement contain certain provisions; detailing agreement provision requirements; assigning certain costs to grantee; prohibiting certain cancellation of financial assurance; making certain agreement provisions void; providing for certain injunctive relief; establishing fees for review and

1 permitting certain facilities by the Office of the
2 Oklahoma State Fire Marshal; limiting the amount of
3 collected fees; providing for distribution of
4 collected fees; requiring completion of certain
5 report as soon as practicable; requiring the State
6 Fire Marshal Commission to adopt certain rules;
7 creating the Oklahoma Solar Energy Development Act;
8 stating legislative findings; requiring owners of
9 solar energy facilities to provide certain statement
10 to landowners; listing minimum requirements of
11 statements; authorizing certain landowners the right
12 to inspect records to verify payments; requiring
13 certain records be made available; detailing the
14 procedure for providing records; requiring the annual
15 reporting of generation, nameplate capacity, and
16 facility location to the Oklahoma Corporation
17 Commission; requiring the keeping of liability
18 insurance policy prior to commencement of
19 construction; requiring landowner be added as
20 additional insured to policy; requiring certain
21 evidence of policy be submitted to landowner;
22 requiring certain notice; requiring submission of a
23 notification of intent to build; requiring
24 Corporation Commission prescribe form and submission
requirements; listing certain required information;
requiring certain notification to board of county
commissioners or municipality; requiring publication
of certain notice by certain date; requiring copies
of notice be sent to certain specified parties;
requiring an affidavit in certain situations;
requiring the holding of a public meeting; requiring
notice of public meeting be published and submitted;
listing requirements of public meeting notice;
requiring certain notice to surface estate owner;
requiring certain provided information be
confidential and proprietary; requiring parties take
certain actions; stating confidentiality provisions
shall not be limited by certain agreements; providing
for certain penalties; listing requirements of notice
to surface estate; prohibiting commencement of
construction until all notification requirements are
satisfied; requiring notification to Corporation
Commission that certain requirements have been met;
providing for certain penalty; stating requirements
shall only apply to certain facilities; requiring
submission of certain site plans to the Office of the
Oklahoma State Fire Marshal at certain time; listing

1 requirements to be included in site plan; limiting
2 review of the Office of the Oklahoma State Fire
3 Marshal; requiring review be completed as soon as
4 practicable; allowing certain on-site actions to
5 proceed during review period; authorizing assessment
6 of certain fee; limiting the amount of collected fee;
7 providing for fee distribution; providing for
8 application to certain facilities; requiring
9 compliance with certain act; requiring submission of
10 certain evidence of financial assurance; providing
11 for certain calculations of financial assurance;
12 requiring financial assurance be certain percentage
13 of decommissioning estimate; authorizing Corporation
14 Commission to promulgate certain rules; granting
15 certain exclusive jurisdiction; providing for
16 codification; and providing an effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
is created a duplication in numbering, reads as follows:

Sections 1 through 8 of this act shall be known and may be cited as
the "Oklahoma Energy Storage Resource Safety Act".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
is created a duplication in numbering, reads as follows:

The Legislature finds that:

1. To protect the citizens of Oklahoma, energy storage
resources shall satisfy safety codes and standards; and

1 2. This act is intended to help Oklahoma secure the benefits of
2 energy storage resources to provide electric grid reliability.

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 180.16 of Title 17, unless there
5 is created a duplication in numbering, reads as follows:

6 As used in the Oklahoma Energy Storage Resource Safety Act:

7 1. "Commencement of operations" means the date on which an
8 energy storage resource first delivers electricity to the grid in an
9 amount sufficient for commercial sale or use off-site from the
10 energy storage resource, but shall not include amounts of electrical
11 energy used only for the maintenance or testing of the energy
12 storage resource or related equipment;

13 2. "Energy storage resource" means a resource capable of
14 receiving electric energy from the electrical grid, or from a
15 generation source with which it is associated, and storing such
16 electric energy for later injection into the electrical grid;

17 3. "Energy storage resource agreement" means a lease agreement
18 between a grantee and a landowner that authorizes the grantee to
19 operate an energy storage resource on the leased property;

20 4. "Grantee" means a person, other than an electric utility
21 who:

22 a. leases property from a landowner, and

23 b. operates an energy storage resource on the property;

24 and

1 5. "Resource owner" means the entity having a majority equity
2 interest in the energy storage resource, including its respective
3 successors and assigns.

4 SECTION 4. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 180.17 of Title 17, unless there
6 is created a duplication in numbering, reads as follows:

7 A. An energy storage resource shall comply with the following
8 minimum safety codes and standards for energy storage resource
9 equipment or facilities:

10 1. The International Fire Code (IFC), as adopted and amended by
11 the Oklahoma Uniform Building Code Commission, in effect at the time
12 a construction permit is applied for; and

13 2. Criteria described in the National Fire Protection
14 Association (NFPA) 855 2026 Standard for the Installation of
15 Stationary Energy Storage Systems.

16 Where a conflict exists between the requirements of the IFC, as
17 adopted and amended by the Oklahoma Uniform Building Code
18 Commission, and the NFPA 855 2026 edition, the provisions of the
19 NFPA 855 2026 edition shall take precedence.

20 B. Before a construction permit is issued for an energy storage
21 resource, the entity responsible for fire inspection and primary
22 emergency response may require the resource owner to pay for an
23 independent, third-party engineer licensed in this state or other
24 consultant with appropriate expertise, to provide a written report

1 to the entity responsible for fire inspection and primary emergency
2 response and the resource owner determining:

3 1. Whether the energy storage resource, as proposed, complies
4 with subsection A of this section; and

5 2. To the extent the energy storage resource does not comply
6 with subsection A of this section, any appropriate actions to cure
7 such noncompliance in accordance with the NFPA 855 2026 edition.

8 C. Any resource owner that receives a lawful request pursuant
9 to subsection B of this section shall cooperate with the request.

10 Such cooperation shall include providing the engineer or consultant
11 with all necessary documents relating to the energy storage
12 resource's site layout, emergency operations plan, hazard mitigation
13 analysis, manufacturer specifications, product listings, including,
14 but not limited to, UL 9540 and UL 9540A reports, compliance with
15 the NFPA 855 2026 edition and other applicable referenced standards,
16 electrical drawings, monitoring procedures, and fire protection
17 system, as applicable to the proposed energy storage resource. If
18 the engineer or consultant identifies appropriate actions to cure
19 noncompliance under paragraph 2 of subsection B of this section, the
20 resource owner shall implement said appropriate actions before
21 commencement of operations.

22 D. Energy storage resources, other than energy storage systems
23 installed in one- and two-family dwellings as defined in the NFPA
24 855 2026 edition, in this state shall have and maintain, at an on-

1 site location accessible to local first responders, a site-specific
2 emergency operations plan. In accordance with the NFPA 855 2026
3 edition, the site-specific emergency operations plan shall identify:

- 4 1. Potential risks and hazards specific to the site;
- 5 2. Hazard mitigation measures;
- 6 3. Procedures for the safe shutdown, de-energizing, or
7 isolation of equipment and systems under emergency conditions,
8 including emergency procedures to be followed in case of fire;
- 9 4. Procedures for handling equipment damaged in a fire or other
10 emergency event;
- 11 5. Procedures and schedules for conducting drills using the
12 procedures listed under this subsection and documentation related to
13 the performance of the drills;
- 14 6. Procedures for communication between the operator of the
15 energy storage resource and first responders, including procedures
16 that facilitate communication between first responders and emergency
17 contacts for the resource operator; and
- 18 7. Emergency operations protocols to ensure safety during
19 critical events, including protocols that provide for the safety of
20 nearby residents, neighboring properties, and first responders.

21 E. Before commencement of operations, the resource owner shall
22 provide the site-specific emergency operations plan to the entity
23 responsible for fire inspection and primary emergency response.

1 F. Energy storage resource owners in this state shall offer to
2 local first responders, at no cost to the responders, education and
3 training regarding responding to an equipment failure incident at
4 the energy storage resource site. The training shall include:

5 1. Training on specific characteristics of the energy storage
6 resource technology;

7 2. Training on protecting first responders during incident
8 response;

9 3. Training on hazards commonly associated with incident
10 response;

11 4. Training on incident response protocols, including an
12 overview of the site-specific emergency operations plan developed
13 under subsection D of this section; and

14 5. An on-site review of the perimeter, major equipment, and
15 ingress and egress to the energy storage resource site.

16 G. Unless expressly authorized by law, political subdivisions
17 in this state shall not adopt, enforce, or maintain any rules,
18 regulations, codes, or standards that uniquely apply to energy
19 storage resources other than those set forth in the Oklahoma Energy
20 Storage Resource Safety Act.

21 SECTION 5. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 180.18 of Title 17, unless there
23 is created a duplication in numbering, reads as follows:

1 A. An energy storage resource agreement executed after the
2 effective date of this act shall provide that the grantee is
3 responsible for removing the grantee's components of an energy
4 storage resource facility from the landowner's property and that the
5 grantee shall, in accordance with any other applicable laws or
6 regulations, safely perform the following:

7 1. Clear, clean, and remove from the property each energy
8 storage resource and associated transformers and substations;

9 2. For each foundation of an energy storage resource,
10 transformer, or substation installed in the ground:

11 a. clear, clean, and remove the foundation from the
12 ground to a depth of at least three (3) feet below the
13 surface grade of the land in which the foundation is
14 installed, and

15 b. ensure that each hole or cavity created in the ground
16 by the removal is filled with soil of the same type or
17 a similar type as the predominant soil found on the
18 property;

19 3. For each buried cable, including power, fiber-optic, and
20 communications cables, installed in the ground:

21 a. clear, clean, and remove the cable from the ground to
22 a depth of at least three (3) feet below the surface
23 grade of the land in which the cable is installed, and
24

1 b. ensure that each hole or cavity created in the ground
2 by the removal is filled with soil of the same type or
3 a similar type as the predominant soil found on the
4 property; and

5 4. Clear, clean, and remove from the property each overhead
6 power or communications line installed by the grantee on the
7 property at the request of the landowner.

8 B. The agreement shall provide that, at the request of the
9 landowner, the grantee shall:

10 1. Clear, clean, and remove each road constructed by the
11 grantee on the property; and

12 2. Ensure that each hole or cavity created in the ground by the
13 removal is filled with soil of the same type or a similar type as
14 the predominant soil found on the property.

15 C. The agreement shall provide that, at the request of the
16 landowner, if reasonable, the grantee shall:

17 1. Remove from the property all rocks over twelve (12) inches
18 in diameter excavated during the decommissioning or removal process;

19 2. Return the property to a tillable state using scarification,
20 V-rip, or disc methods, as appropriate; and

21 3. Ensure that:

22 a. each hole or cavity created in the ground by the
23 removal is filled with soil of the same type or a
24

1 similar type as the predominant soil found on the
2 property, and

- 3 b. the surface is returned as near as reasonably possible
4 to the same condition as before the grantee dug holes
5 or cavities, including by reseeding pastureland with
6 native grasses prescribed by an appropriate
7 governmental agency, if any. Noninvasive grasses
8 shall be allowed when reseeding native grasses is not
9 economically feasible.

10 D. The landowner shall make a request under subsection B or C
11 of this section not later than the one hundred eightieth day after
12 the later of:

13 1. The date on which the landowner receives from the grantee
14 via certified mail a copy of a notification of intent to suspend
15 operations filed with a grid operator indicating an intent to
16 permanently cease operations; or

17 2. The date the landowner receives written notice of intent to
18 decommission the energy storage resource from the grantee.

19 E. The provisions of this section shall only apply to energy
20 storage resource agreements executed after the effective date of
21 this act and shall have no effect on existing agreements.

22 SECTION 6. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 180.19 of Title 17, unless there
24 is created a duplication in numbering, reads as follows:

1 A. An energy storage resource agreement executed after
2 effective date of this act shall provide that the grantee obtain and
3 deliver to the landowner evidence of financial assurance that
4 conforms to the requirements of this section to secure the
5 performance of the grantee's obligation to remove the grantee's
6 energy storage resource facilities located on the landowner's
7 property as described by Section 5 of this act. Acceptable forms of
8 financial assurance include a parent company guaranty with a minimum
9 investment grade credit rating for the parent company issued by a
10 major domestic credit rating agency, a letter of credit, a bond, or
11 another form of financial assurance reasonably acceptable to the
12 landowner.

13 B. The amount of the financial assurance shall be at least
14 equal to the estimated amount by which the cost of removing the
15 energy storage resource facilities from the landowner's property and
16 restoring the property to as near as reasonably possible the
17 condition of the property as of the date the agreement begins
18 exceeds the salvage value of the facilities, less any portion of the
19 value of the facilities pledged to secure outstanding debt.

20 C. The agreement shall provide that:

21 1. The estimated cost of removing the energy storage resource
22 facilities from the landowner's property and restoring the property
23 to as near as reasonably possible the condition of the property as
24 of the date the agreement begins, and the estimated salvage value of

1 the energy storage resource facilities, shall be determined by an
2 independent, third-party professional engineer licensed in this
3 state;

4 2. The grantee shall deliver to the landowner an updated
5 estimate, prepared by an independent, third-party professional
6 engineer licensed in this state, of the cost of removal and the
7 salvage value:

- 8 a. on or before the tenth anniversary of commencement of
9 operations of the energy storage resource facility,
10 and
11 b. at least once every five (5) years thereafter for the
12 remainder of the term of the agreement; and

13 3. The grantee is responsible for ensuring that the amount of
14 the financial assurance remains sufficient to cover the amount
15 required by subsection B of this section, consistent with the
16 estimates required by this subsection.

17 D. The grantee is responsible for the costs of obtaining
18 financial assurance described by this section and costs of
19 determining the estimated removal costs and salvage value.

20 E. The agreement shall provide that, if the grantee fails to
21 fulfill the scope of decommissioning and removal work specified in
22 the agreement, the grantee shall deliver the financial assurance not
23 later than the earlier of:
24

1 1. The date the energy storage resource agreement is
2 terminated; or

3 2. The twentieth anniversary of the commencement of operations
4 of the energy storage resources located on the landowner's property,
5 unless the term of the agreement is extended.

6 F. The grantee may not cancel financial assurance before the
7 date the grantee has completed the grantee's obligation to remove
8 the grantee's energy storage resource facilities located on the
9 landowner's property in the manner provided by this act, unless the
10 grantee provides the landowner with replacement financial assurance
11 at the time of or before the cancellation. In the event of a
12 transfer of ownership of the grantee's energy storage resource
13 facilities, the financial security provided by the grantee shall
14 remain in place until the date evidence of replacement financial
15 security meeting the requirements of this act is provided to the
16 landowner by the transferee.

17 G. The provisions of this section shall only apply to energy
18 storage resource agreements executed after the effective date of
19 this act and shall have no effect on existing agreements.

20 SECTION 7. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 180.20 of Title 17, unless there
22 is created a duplication in numbering, reads as follows:

23 A. A provision of an energy storage resource agreement executed
24 after the effective date of the Oklahoma Energy Storage Resource

1 Safety Act that purports to waive a right or exempt a grantee from a
2 liability or duty established under the Oklahoma Energy Storage
3 Resource Safety Act is void and unenforceable, but the remainder of
4 the agreement shall remain enforceable.

5 B. A resource owner shall comply with the decommissioning
6 obligations set forth in the Oklahoma Energy Storage Resource Safety
7 Act. A landowner subject to an energy storage resource agreement is
8 expressly authorized to bring an action in district court for
9 injunctive relief to enforce compliance with this act.

10 C. The provisions of this section are not exclusive. The
11 remedies provided in this section are in addition to any other
12 procedures or remedies provided by other law. Failure to comply
13 with the Oklahoma Energy Storage Resource Safety Act does not impair
14 the validity or enforceability of any lease, easement, mortgage,
15 deed of trust, or other interest in real property.

16 SECTION 8. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 180.21 of Title 17, unless there
18 is created a duplication in numbering, reads as follows:

19 A. For energy storage resource facilities located in areas
20 where no recognized local authority having jurisdiction exists, and
21 where, as a result, any component of an energy storage resource
22 facility or the energy storage resource facility itself is subject
23 to inspections, plan reviews, or permits from the Office of the
24 Oklahoma State Fire Marshal, as provided in the codes adopted by the

1 Oklahoma Uniform Building Code Commission, the State Fire Marshal
2 Commission may establish a fee rate of no more than six cents
3 (\$0.06) per square foot of surface physically occupied aboveground
4 by energy storage resource facility infrastructure. Such fee shall
5 be inclusive of all inspections, plan reviews, permit issuance, and
6 other review actions undertaken by the Office of the Oklahoma State
7 Fire Marshal in connection with the project, and the total fee shall
8 not exceed Five Hundred Thousand Dollars (\$500,000.00) for any
9 individual energy storage resource facility. Nothing in this
10 section shall be construed to authorize the collection of fees
11 beyond said amount, except as otherwise provided by law. Where a
12 recognized local authority having jurisdiction exists, such local
13 authority is subject to the same fee limitations as the Office of
14 the Oklahoma State Fire Marshal established in this subsection.

15 B. Any fees collected pursuant to subsection A of this section
16 shall be distributed as follows:

17 1. Seventy-five percent (75%) of such fees shall be
18 distributed to the local fire department providing primary fire
19 protection services to the jurisdiction where the facility is
20 located, within sixty (60) days of receipt. Funds distributed under
21 this paragraph shall be used solely for fire protection, fire
22 prevention, inspections, training, or emergency response activities
23 related to the facility; and
24

1 2. Twenty-five percent (25%) of such fees shall remain with
2 the Office of the Oklahoma State Fire Marshal for regulatory
3 purposes.

4 C. For purposes of this section, "recognized local authority
5 having jurisdiction" means a city, town, college, county, or fire
6 protection district that has been recognized by the Office of the
7 Oklahoma State Fire Marshal as the authority having jurisdiction for
8 permits, inspections, and enforcement under the adopted codes.

9 D. The Office of the Oklahoma State Fire Marshal or a local
10 authority having jurisdiction, where applicable, shall complete any
11 review subject to subsection A of this section as soon as
12 practicable, and in no event later than thirty (30) calendar days
13 following receipt of complete site plans.

14 E. The State Fire Marshal Commission shall adopt rules as
15 necessary to implement the provisions of this section, pursuant to
16 Section 324.9 of Title 74 of the Oklahoma Statutes, including, but
17 not limited to, fee collection and distributions.

18 SECTION 9. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 160.24 of Title 17, unless there
20 is created a duplication in numbering, reads as follows:

21 A. For wind energy facilities located in areas where no
22 recognized local authority having jurisdiction exists, and where, as
23 a result, any component of a wind energy facility or the wind energy
24 facility itself is subject to inspections, plan reviews, or permits

1 from the Office of the Oklahoma State Fire Marshal, as provided in
2 the codes adopted by the Oklahoma Uniform Building Code Commission,
3 the State Fire Marshal Commission may establish a fee rate of no
4 more than six cents (\$0.06) per square foot of surface physically
5 occupied aboveground by wind energy facility infrastructure. Such
6 fee shall be inclusive of all inspections, plan reviews, permit
7 issuance, and other review actions undertaken by the Office of the
8 Oklahoma State Fire Marshal in connection with the project, and the
9 total fee shall not exceed Five Hundred Thousand Dollars
10 (\$500,000.00) for any individual wind energy facility. Nothing in
11 this section shall be construed to authorize the collection of fees
12 beyond said amount, except as otherwise provided by law. Where a
13 recognized local authority having jurisdiction exists, such local
14 authority is subject to the same fee limitations as the Office of
15 the Oklahoma State Fire Marshal established in this subsection.

16 B. Any fees collected pursuant to subsection A of this section
17 shall be distributed as follows:

18 1. Seventy-five percent (75%) of such fees shall be distributed
19 to the local fire department providing primary fire protection
20 services to the jurisdiction where the facility is located, within
21 sixty (60) days of receipt. Funds distributed under this paragraph
22 shall be used solely for fire protection, fire prevention,
23 inspections, training, or emergency response activities related to
24 the facility; and

1 2. Twenty-five percent (25%) of such fees shall remain with the
2 Office of the Oklahoma State Fire Marshal for regulatory purposes.

3 C. For purposes of this section, "recognized local authority
4 having jurisdiction" means a city, town, college, county, or fire
5 protection district that has been recognized by the Office of the
6 Oklahoma State Fire Marshal as the authority having jurisdiction for
7 permits, inspections, and enforcement under the adopted codes.

8 D. The Office of the Oklahoma State Fire Marshal or a local
9 authority having jurisdiction, where applicable, shall complete any
10 review subject to subsection A of this section as soon as
11 practicable, and in no event later than thirty (30) calendar days
12 following receipt of complete site plans.

13 E. The State Fire Marshal Commission shall adopt rules as
14 necessary to implement the provisions of this section, pursuant to
15 Section 324.9 of Title 74 of the Oklahoma Statutes, including, but
16 not limited to, fee collection and distributions.

17 SECTION 10. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 809 of Title 17, unless there is
19 created a duplication in numbering, reads as follows:

20 Sections 10 through 20 of this act shall be known and may be
21 cited as the "Oklahoma Solar Energy Development Act".

22 SECTION 11. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 809.1 of Title 17, unless there
24 is created a duplication in numbering, reads as follows:

1 The Legislature finds that the prudent development of solar
2 energy resources requires assurances that the rights of private
3 landowners should be protected, that such landowners have access to
4 adequate information to verify the accuracy of their payments, among
5 other protections, and that public and mineral interest operators
6 receive sufficient notice of planned developments.

7 SECTION 12. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 809.2 of Title 17, unless there
9 is created a duplication in numbering, reads as follows:

10 As used in the Oklahoma Solar Energy Development Act:

11 1. "Commencement of construction" means the date on which the
12 owner or developer of a solar energy facility installs a post or
13 posts into the ground for panel foundations. The term shall not
14 include environmental assessments, surveys, preliminary engineering,
15 site preparation, or other activities associated with assessment of
16 development of the solar resources on a given parcel of property;

17 2. "Facility" means a solar energy facility;

18 3. "Owner" means the entity having a majority equity interest
19 in a solar energy facility, including its respective successors and
20 assigns;

21 4. "Racking system" means the permanent structural framework,
22 including foundations, piles, mounts, or tracking equipment that is
23 designed to support, anchor, and orient photovoltaic modules or
24 related solar-energy-producing equipment at a solar energy facility

1 and that is integral to the facility's ability to generate
2 electricity; and

3 5. "Solar energy facility" means an electric-generating
4 facility using photovoltaic or solar-thermal technologies with a
5 nameplate capacity greater than one (1) megawatt alternating current
6 (AC), designed to deliver energy to the electric grid and not
7 primarily to on-site load, unless otherwise specified by state law.

8 SECTION 13. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 809.3 of Title 17, unless there
10 is created a duplication in numbering, reads as follows:

11 For landowners who are paid based on the amount of electrical
12 energy produced from the conversion of solar energy, the owner of
13 any solar energy facility shall provide a statement within ten (10)
14 business days of the payment to the landowner in consideration for
15 the use of the property of the landowner to generate electrical
16 energy. The statement shall provide, at a minimum, information
17 reasonably necessary to assist the landowner an understanding of the
18 basis for the payment to the landowner and a means of confirming its
19 accuracy.

20 SECTION 14. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 809.4 of Title 17, unless there
22 is created a duplication in numbering, reads as follows:

23 A. Any landowner who has, through a lease, easement, or other
24 arrangement, allowed a solar energy facility foundation or racking

1 system to be placed on the property of the landowner and who is paid
2 based on the amount of electrical energy produced from the
3 conversion of solar energy shall have the right to inspect the
4 records of the owner of the solar energy facility for the purpose of
5 confirming the accuracy of any payments made to the landowner within
6 the past twenty-four (24) months.

7 B. The owner of any solar energy facility, any portion of which
8 is located in this state, upon request of a landowner with the right
9 to inspect records as set forth in subsection A of this section,
10 shall make available, within a reasonable time, all records,
11 documents, data, and other information, or copies thereof, as are
12 necessary for a landowner to conduct the inspection specified in
13 subsection A of this section. The records shall be made available
14 within the confines of this state and in a location and manner that
15 affords a landowner reasonable access to the records during normal
16 business hours. The landowner shall be permitted one request per
17 calendar year and be afforded a reasonable length of time to
18 complete the inspection but shall not cause undue disruption to the
19 operations of the owner during the inspection. The records shall be
20 subject to the confidentiality requirements contained in the
21 respective landowner lease agreement.

22 SECTION 15. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 809.5 of Title 17, unless there
24 is created a duplication in numbering, reads as follows:

1 A. The owner of any solar energy facility shall report to the
2 Oklahoma Corporation Commission the electrical energy generated by
3 the solar energy facility, the nameplate capacity of the solar
4 energy facility, and the location of the solar energy facility.

5 B. If a solar energy facility contains generating units with
6 different nameplate capacities, the information required in
7 subsection A of this section shall be reported separately for each
8 nameplate capacity.

9 C. The information required by this section shall be reported
10 on an annual basis, with the information due not later than March 1
11 of each calendar year.

12 SECTION 16. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 809.6 of Title 17, unless there
14 is created a duplication in numbering, reads as follows:

15 A. Prior to commencing construction of a solar energy facility,
16 the owner of the solar energy facility shall obtain and keep in
17 effect either:

18 1. A commercial general liability insurance policy with
19 coverage limits consistent with prevailing industry standards; or

20 2. A combination of self-insurance and excess liability
21 insurance.

22 B. The owner shall cause the owner of the land on which the
23 solar energy facility is located to be named as an additional
24 insured under the policy.

1 C. The owner shall deliver to the landowner a certificate of
2 insurance evidencing the policy. The landowner shall be given not
3 less than thirty (30) days prior written notice of any material
4 modification, cancellation, or termination of the insurance policy.

5 SECTION 17. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 809.7 of Title 17, unless there
7 is created a duplication in numbering, reads as follows:

8 A. The owner of a solar energy facility shall submit a
9 notification of intent to build a facility to the Oklahoma
10 Corporation Commission at least six (6) months before the
11 commencement of construction, as defined in Section 12 of this act.
12 The Corporation Commission shall prescribe the form and submittal
13 requirements of the notification; provided, the information required
14 on the notification form shall include a description of the
15 facility, the nameplate capacity, the general location of the
16 facility, and a map of the project boundary.

17 The owner of the solar energy facility shall send copies of the
18 notification to the board of county commissioners of every county in
19 which all or a portion of the solar energy facility is to be located
20 within twenty-four (24) hours of filing said notification with the
21 Corporation Commission. If all or a portion of the solar energy
22 facility is to be located within the incorporated area of a
23 municipality, a copy of the notification shall also be sent to the
24

1 governing body of the municipality within twenty-four (24) hours of
2 filing said notification with the Corporation Commission.

3 B. Within six (6) months of submitting the notification to the
4 Corporation Commission as provided for in subsection A of this
5 section, the owner of the solar energy facility shall cause a copy
6 of the notification to be published in a newspaper of general
7 circulation in the county or counties in which all or a portion of
8 the solar energy facility is to be located. Proof of publication
9 shall be submitted to the Corporation Commission.

10 C. Within six (6) months of submitting the notification to the
11 Corporation Commission as provided in subsection A of this section,
12 the owner of the solar energy facility shall cause a copy of the
13 notification to be sent, by certified mail, to:

14 1. Any operator, as reflected in the records of the Corporation
15 Commission, conducting oil and gas operations upon all or any part
16 of the surface estate on which the solar energy developer intends to
17 construct the solar energy facility;

18 2. Any operator, as reflected in the records of the Corporation
19 Commission, of an unspaced unit or a unit created by order of the
20 Corporation Commission, conducting oil and gas operations for a unit
21 where all or any part of the unit area is within the geographical
22 boundaries of the surface estate on which the solar energy developer
23 intends to construct the solar energy facility; and
24

1 3. All lessees of oil and gas leases covering the mineral
2 estate underlying any part of the tracts of land that are filed of
3 record with the county clerk in the county where the tracts are
4 located and whose primary term has not expired. This paragraph
5 shall apply to tracts of land not described in paragraphs 1 and 2 of
6 this subsection on which the solar energy developer intends to
7 construct a solar energy facility;

8 4. Any working interest owner of a unit created by order of the
9 Corporation Commission, as identified and provided by the operator
10 of the unit, to the owner of the solar energy facility, within
11 thirty (30) days of request, where all or any part of the unit area
12 is within the geographical boundaries of the surface estate on which
13 the solar energy developer intends to construct the solar energy
14 facility; and

15 5. Any operator of a well permitted by the Corporation
16 Commission for injection or disposal purposes, as reflected in the
17 records of the Corporation Commission, where such well is located
18 within the geographical boundaries of the surface estate on which
19 the solar energy developer intends to construct the solar energy
20 facility.

21 If the solar energy developer makes a search with reasonable
22 diligence and the whereabouts of a party entitled to notice cannot
23 be ascertained or the notice cannot be delivered, an affidavit
24

1 attesting to such diligent search shall be submitted to the
2 Corporation Commission.

3 D. Within sixty (60) days of publication of the notification in
4 a newspaper of general circulation as provided for in subsection B
5 of this section, the owner of the solar energy facility shall hold a
6 public meeting. Notice of the public meeting shall be published in
7 a newspaper of general circulation and submitted to the board of
8 county commissioners in the county or counties in which all or a
9 portion of the solar energy facility is to be located. The notice
10 shall contain the place, date, and time of the public meeting.
11 Proof of publication of the notice shall be submitted to the
12 Corporation Commission. The public meeting shall be held in the
13 county or in one of the counties in which all or a portion of the
14 solar energy facility is to be located.

15 E. With regard to the surface estate upon which the owner of a
16 solar energy facility intends to construct the facility, at least
17 sixty (60) days before entering upon the surface estate for the
18 purpose of commencement of construction, the owner shall provide
19 written notice, by certified mail, of its intent to construct the
20 solar energy facility to the parties described in subsection C of
21 this section.

22 The notice shall contain a map or plat of the proposed location,
23 with sufficient specificity to identify the elements of the solar
24 energy facility to be located on the governmental section and the

1 approximate date construction is proposed to commence. If the solar
2 energy developer makes a search with reasonable diligence and the
3 whereabouts of a party entitled to notice cannot be ascertained or
4 the notice cannot be delivered, an affidavit attesting to such
5 diligent search shall be submitted to the Corporation Commission.
6 Within thirty (30) days of receiving such notice, any party
7 described in subsection C of this section shall reciprocate, in
8 writing by certified mail, the relevant site, operational, and
9 infrastructure information sufficient to assist with the safe
10 construction and operation of the solar energy facility. This
11 information shall include American Land Title Association surveys,
12 if available, and technical specifications for existing subsurface
13 or surface improvements.

14 Any information provided by an oil and gas operator or solar
15 energy developer pursuant to this subsection shall be confidential
16 and proprietary. The parties shall:

17 1. Use such information solely for the purposes of this
18 section;

19 2. Not disclose such information to any third party without the
20 prior written consent of the disclosing party, except as required by
21 law or order of a court of competent jurisdiction or the Corporation
22 Commission; and

23 3. Upon written request of the disclosing party, return or
24 destroy all such information and certify the same in writing.

1 The confidentiality obligations of this subsection shall not be
2 limited by or contingent upon the terms of any landowner lease
3 agreement or surface use agreement. Violation of this provision
4 shall constitute grounds for the Corporation Commission to suspend
5 or revoke a permit issued under this act, in addition to any other
6 remedies available at law or in equity.

7 F. The owner of a solar energy facility shall not commence
8 construction on the facility until the notification and public
9 meeting requirements of this section have been satisfied. Upon the
10 commencement of the sixty-day notice required under subsection E of
11 this section, the owner shall notify the Corporation Commission that
12 such notice has commenced and shall include an affirmation that all
13 other notices and notifications required by this section have been
14 properly provided.

15 If an owner of a solar energy facility fails to submit any
16 information required by this section, the owner shall be subject to
17 an administrative penalty not to exceed One Thousand Five Hundred
18 Dollars (\$1,500.00) per day, per violation, as provided by law.

19 G. The provisions of this section shall only apply to
20 facilities that commence construction after May 1, 2027, and shall
21 not apply to any facilities that commenced construction before that
22 date, including any subsequent maintenance, repairs, modifications,
23 or other work on existing facilities.

SECTION 18. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 809.8 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. When applicable, a solar energy developer shall submit site plans and fees for any new solar energy facility to the Office of the Oklahoma State Fire Marshal for review. Such site plans shall be submitted when the solar energy facility is sixty percent (60%) complete in design development. The site plans shall include an accurate representation of:

1. Photovoltaic modules;
2. Inverters;
3. Monitoring and control equipment;
4. Substations;
5. Collection lines;
6. Access roads;
7. Temporary construction areas;
8. Operation and maintenance facilities; and
9. Other relevant supporting infrastructure.

B. Review by the Office of the Oklahoma State Fire Marshal shall be limited to compliance with applicable fire and building safety codes, including:

1. The Oklahoma-adopted International Building Code, as codified at OAC 748:20-2-1; and

1 2. The 2018 Edition of the International Fire Code, as codified
2 at OAC 748:20-4-1.

3 C. The Office of the Oklahoma State Fire Marshal shall complete
4 its review as soon as practicable, but in no event not later than
5 thirty (30) calendar days following receipt of complete site plans
6 and fees. In the event the Office of the Oklahoma State Fire
7 Marshal does not complete its review within thirty (30) calendar
8 days, any applicable permits and certificates shall be deemed
9 issued.

10 D. During the pendency of the review by the Office of the
11 Oklahoma State Fire Marshal, the following on-site activities may
12 proceed:

13 1. Timbering, clearing, and grubbing vegetation;

14 2. Civil grading and earthwork;

15 3. Installation of stormwater pollution prevention measures and
16 best management practices;

17 4. Installation of laydown areas and substation concrete
18 foundation pads, including rough grading and gravel;

19 5. Installation of racking systems, inverters, photovoltaic
20 modules, low-voltage collection systems, and above-ground
21 transmission poles;

22 6. Public road improvements, entrance installations, and
23 service road construction;

24

1 7. Placement of construction trailers with temporary power,
2 fiber connections, and portable sanitation facilities;

3 8. Sub-grade open trenching;

4 9. Installation of on-grade concrete foundations; and

5 10. Installation of structural columns and beams.

6 E. The Office of the Oklahoma State Fire Marshal may assess a
7 plan review fee at a rate of six cents (\$0.06) per square foot of
8 actual erected solar facilities, provided that the total fee shall
9 not exceed Five Hundred Thousand Dollars (\$500,000.00) for any
10 single solar energy facility. The amount of such fee shall have a
11 reasonable connection to the work actually performed by the Office
12 of the Oklahoma State Fire Marshal.

13 F. Of the fees collected pursuant to this section:

14 1. Seventy-five percent (75%) shall be distributed to the local
15 fire department providing primary fire protection services to the
16 jurisdiction where the facility is located, within sixty (60) days
17 of receipt. Funds distributed pursuant to this paragraph shall be
18 used solely for fire protection, fire prevention, inspections,
19 training, or emergency response activities related to the facility;
20 and

21 2. Twenty-five percent (25%) may be retained by the Office of
22 the Oklahoma State Fire Marshal for regulatory purposes.

23 G. If the Office of the Oklahoma State Fire Marshal delegates
24 any site plan review, permitting, or similar authority over a solar

1 energy facility to a recognized local authority having jurisdiction,
2 fees and timing shall continue to conform to subsections C and E of
3 this section.

4 H. The provisions of this section shall apply to solar energy
5 facilities designed to provide electricity to the grid, as well as
6 any utility-scale solar energy facility designed to deliver
7 electricity directly from a generating facility to a single end-use
8 customer.

9 SECTION 19. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 809.9 of Title 17, unless there
11 is created a duplication in numbering, reads as follows:

12 A. In addition to complying with the provisions of this act, the
13 owner of a solar energy facility shall comply with the provisions of
14 the Commercial Solar Facility Decommissioning Act in accordance with
15 Section 820 et seq. of Title 17 of the Oklahoma Statutes.

16 B. An owner shall submit evidence of financial assurance
17 sufficient to secure the performance of its decommissioning
18 obligations in accordance with the Commercial Solar Facility
19 Decommissioning Act on or before the tenth year of operation of the
20 facility and thereafter upon request by the Commission, but at least
21 once every five (5) years for the life of the solar energy facility.
22 The amount of such financial assurance shall be calculated in
23 accordance with the Commercial Solar Facility Decommissioning Act,
24 but shall not be less than one hundred twenty-five percent (125%) of

1 the estimate of the total cost of decommissioning, less the salvage
2 value of facility equipment and any portion of the value of such
3 equipment pledged to secure outstanding debt.

4 SECTION 20. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 809.10 of Title 17, unless there
6 is created a duplication in numbering, reads as follows:

7 The Oklahoma Corporation Commission shall have authority to
8 promulgate rules as necessary to implement the provisions of the
9 Oklahoma Solar Energy Development Act and to set fees necessary to
10 perform the duties and responsibilities of the Commission pursuant
11 to the act. The Oklahoma Corporation Commission shall have
12 exclusive jurisdiction to enforce the provisions of this act that
13 are within its authority.

14 SECTION 21. This act shall become effective November 1, 2026.

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